

mandement which may come to them from us, or from any other, or by any other cause.

Agreeable to that great canon of the law anno 3 E. 1. which we have translated into Latin: *Rex præcipit quod pax sacrosanctæ ecclesiæ et regni solidè custodiatur et conservetur in omnibus, quodq; justitia singularis tam pauperibus quam divitibus administratur, nulla habita personarum ratione.* See the second part of the Institutes, W. 1. cap. 1.

8 H. 4. the king hath committed all his power judiciall, some in one court, and some in another, so as if any would render himselfe to the judgement of the king in such case where the king hath committed all his power judiciall to others, such a render should be to no effect. And 8 H. 6. the king doth judge by his judges (the king having distributed his power judiciall to severall courts) and the king hath wholly left matters of judicature according to his lawes to his judges.

And albeit it be enacted that the delinquent shall be fined at the will of the king, *Non dominus rex in camera sua, nec aliter nisi per justiciarios suos (finem imponit) et hæc est voluntas regis, viz. per justiciarios et legem suam, unum est dicere.*

The second conclusion is, that in those dayes this court of kings bench did follow the court: and therefore Bracton calleth it *aulam regiam*, because they sat in the kings hall. Britton calleth the justices of this court, *justices assignes de nous suer*: and Fleta, *ubi tunc fuerimus in Anglia*.

The third is, that it is called the kings bench, and the pleas thereof *coram rege*: because in this court (as Bracton saith) those *capitales justiciarii proprias regis causas terminant*, and therefore the king himselfe cannot be judge in *propria causa*.

The fourth is, that under these words [*proprias causas*] are included three things. First, all pleas of the crowne; as all manner of treasons, felonies, and other pleas of the crown which *ex congruo*, are aptly called *proprie cause regis*, because they are *placita coronæ regis*. Secondly, regularly to examine and correct all and all manner of errors in fact, and in law, of all the judges and justices of the * realm in their judgements, proccesse, and proceeding in courts of record, and not only in pleas of the crown, but in all pleas, reall, personall, and mixt, (the court of the exchequer excepted, as hereafter shall appear.) And this is *procurum quarto modo* to the king in this court: for regularly no other court hath the like jurisdiction, and therefore may be well called *propria causa regis*. and these two be of high and soveraign jurisdiction. * Thirdly, this court hath not only jurisdiction to correct errors in judiciall proceeding, but other errors and misdemeanours extrajudiciall tending to the breach of the peace, or oppression of the subjects, or raising of faction, controversy, debate, or any other manner of misgovernment; so that no wrong or injury, either publick or private, can be done, but that this shall be reformed or punished in one court or other by due course of law. As if any person be committed to prison, this court upon motion ought to grant an *habeas corpus*, and upon returne of the cause do justice and relieve the party wronged. And this may be done though the party grieved hath no priviledge in this court. It granteth prohibitions to courts temporall and ecclesiasticall, to keep them within their proper jurisdiction. Also this court may baile any person for any offence

W. 1. 22. 3 E. 1.
cap. 1.
Fleta lib. 1.
ca. 29.

[71]

8 H. 4. fo. 19.

8 H. 6. 20 & tit.
Grant. F. 5.

2 R. 3. fol. 12.

Of these you may read in Glanvil. lib. 1. cap. 2. Sec. & lib. 10. cap. 18. and in the third part of the Institutes per totum, & Stanf. per totum.

* And in Ireland of errors in the kings bench there. lib. 7. fo. 18. F. N. B. 22. 34. Ass. 7. 39 E. 3. Error 88. a Lib. 11. fo. 98. Jam. Baggescafe Vid. 10 E. 3. ca. 3. Mar-shallea.

whatsoever. And if a freeman in city, burgh, or town corporate be disfranchised unjustly, albeit he hath no priviledge in this court, yet this court may relieve the party, as it appeareth in James Bagges case, *ubi supra, et sic in similibus*.

F. N. B. 89. 92.
* Tr. 19 E. 3.
coram rege
rot. 56. Linc.

b 2 part of the
Institutes, Mag-
na Carta, cap. 11.

Fourthly, this court may hold plea by writ out of the chancery of all trespasses done *vi et armis*, of replevins, of * *quare impedit, &c.*

b See the second part of the Institutes, the 11 chapter of Mag. Carta, *Communia placita non sequantur curiam nostram*.

Fifthly, this court hath power to hold plea by bill for debt, detainue, covenant, promise, and all other personall actions, *ejectione firme*, and the like, against any that is in *custodia mareschalli*, or any officer, minister, or clerk of the court: and the reason hereof is, for that if they should be sued in any other court they should have the priviledge of this court: and lest there should be a fayler of justice (which is so much abhorred in law) they shall be impleaded here by bill though these actions be common pleas, and are not restrained by the said act of Magna Carta, *ubi supra*. Likewise the officers, ministers, and clerks of this court privileged by law in respect of their necessary attendance in court, may impleade others by bill in the actions foresaid. And all this appeareth by Bracton, who lived when Magna Carta was made, *ubi supra*: where he saith, *Et aliorum omnium per querelam vel per privilegium sive libertatem*. And continuall experience concurrith with antiquity herein.

[72]

See the second
part of the In-
stitutes, *ubi*
supra, 27 H. 3.
coram rege.
rot 9.
Hus & Haut,

H. P. captus per querimoniam mercatorum Flandrie et imprisonatus offert domino regi hus et haut in plegio ad standum recto, et ad respondendum predictis mercatoribus, et omnibus aliis qui versus eum loqui voluerint, &c. This plea was after the statute of Magna Carta, anno 9 H. 3. Of these words *hus* and *haut*, two French words. *Hus* signifying an elder-tree, and *haut* the staffe of a halbert, &c. I leave the conjecture that some have made thereof to themselves: we think it was then common bail changed now to *Do* and *Ro*, and the rather for this word [*effert*.] And it is observable, that then putting in baile at one mans suit, he was in *custodia mareschalli* to answer all others which would sue him by bill, and this continueth to this day. If any person be in *custodia mareschalli*, &c. be it by commitment, or by latitat', bill of Mid' or other proces of law, it is sufficient to give the court jurisdiction: and the rather, for that the court of common pleas is not able to dispatch all the subjects causes, if the said actions should be confined only to that court. And seeing none but serjeants at law can practise in the court of common pleas, it is necessary that in this court of kings bench apprentices and other counsellors of law might by experience inable themselves to be called serjeants afterwards; otherwise serjeants must want experience, which is the life of their profession. And the proceedings in that court for so long time, and under so many honourable judges and reverend sages of the law, hath gotten such a foundation, as cannot now without an act of parliament be shaken. And the errors in the kings bench cannot be reversed (but in certain particular actions by the statute of 27 Eliz. cap. 8. wherein the jurisdiction of the court is saved) but in the high court of parliament, as before in the chapter of the court of parliament appeareth.

31 H. 6. 10. b.
adjudge.

Sixthly,